



PAKISTAN BROADCASTING CORPORATION (AMENDMENT) ORDINANCE, 2002

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PAKISTAN BROADCASTING CORPORATION (AMENDMENT) ORDINANCE, 2002

ORDINANCE XCIV OF 2002

An Ordinance further to amend the Pakistan Broadcasting

WHEREAS it is expedient further to amend the Pakistan Broadcasting Corporation Act, 1973 (XXXII of 1973) for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:---

1. Short title and commencement.-(1) This Ordinance may be called the Pakistan Broadcasting Corporation (Amendment) Ordinance, 2002.

(2) It shall come into force at once

2. Amendment of section 2, Act XXXII of 1973.-(1) In the Pakistan Broadcasting Corporation Act, 1973 (XXXII of 1973), hereinafter referred to as the said Act, in section 2, for clause (d) the following shall be substituted namely:-

"(d) "Member" means a Member of the Board; "

3. Substitution of section 4, Act XXXII of 1973. In the said Act, for section 4 the following shall be substituted, namely:-

4. Board.-(1) The general direction and the administration of Corporation shall vest in a Board, to be constituted in accordance with the provisions of sub-section (2)."

(2) The Board shall consist of the following:-

(i) Secretary to the Government of Pakistan, Ministry of Information and Media Development	Chairman
(ii) One eminent person each from the four to provinces relating to media and management	
(v) to be appointed by the Federal Government.	Members
(vi) Additional Foreign Secretary	Member
(vii) Additional Secretary Finance	Member
(viii) Director General, ISPR.	Member
(ix) Managing Director, PTVC	Member
(x) Director General, PBC.	Member
(xi) A representative of the Interior Division	Member

(3) The Chairman and Members mentioned at- clauses (vi) to (xi) of subsection (2) shall be ex officio Members of the Board.

(4) The Members appointed under clauses (ii) to (v) of subsection (2) shall hold office for a term of three years and shall be eligible for reappointment but in no case for more than two consecutive terms. They may by giving in writing to the Federal Government a notice of not less than one month, resign their offices:

Provided that the resignation shall not take effect until it has been accepted by the Federal Government.

(5) In particular and without prejudice to the generality of the provisions of sub-section (1), the Board shall have full powers with regard to-

- (a) the preparation of the annual revenue budget of the Corporation and approval of the budget and expenditure not included in its annual budget for capital and development expenditure;
- (b) the formulating and implementing of all programmes and policies; and
- (c) the making of plans for infrastructural and technological development within the country and for promotion of the Corporation's interests abroad."

5. Omission of section 5, Act XXXII of 1973. In the said Act section 5 shall be omitted.

6. Mendment of section 6, Act XXXII of 1973. In the said Act, in section 6,-

- (a) for the words "Director other than the Chairman" the word "Member" shall substituted ; and
- (b) in clause (a), for the word "director" the word "Member" shall be substituted.

7. Amendment of section 7, Act XXXII of 1973. In the said Act, in section 7,-

- (a) in sub-section (1), in the proviso, for the words "every month" the words "at least once in a quarter" shall be substituted;
- (b) in sub-section (2), for the word "Director", the word "Member" shall be substituted and for the word "Directors" the word "Members" shall be substituted; and
- (c) in sub-section (4), for the word "Director" the word "member" shall be substituted.

8. Amendment of section 10, Act XXXII of 1973. In the said Act, in section 10, in sub-section (1),-

- (a) in clause (c), for the words "Federal Government" the word "Board" shall be substituted; and
 - (b) in clause (d), for the words "Federal Government" the word "Board" shall be substituted.
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